

Multiple Choice (10 marks)

1. Which statement best describes the relationship between law and morality among non-positivist legal theorists?
 - (a) There is no relationship between law and morality.
 - (b) Law is always in advance of moral ideas.
 - (c) The law is inextricably bound up with morals.
 - (d) Morality is generally in advance of the law.
2. Why is it important to separate the concept of punishment from its justification?
 - (a) Because its justification depends on the concept employed.
 - (b) Because any definition of punishment should be value-neutral.
 - (c) Because the concept of punishment is controversial.
 - (d) Because the practice of punishment is separate from its justification.
3. Dworkin contends that to every legal question there is only one right answer. Which proposition below is most inconsistent with this claim?
 - (a) In hard cases judges generally decide cases on the basis of rights.
 - (b) The rights of the parties feature in the determination of most cases before the courts.
 - (c) Judges exercise strong discretion.
 - (d) Judges seek the best 'fit' with constitutional and institutional history.
4. Which proposition below is the most consistent with what Rawls claims the POP would opt for in respect of 'social primary goods'?
 - (a) The POP will choose wealth over a compassionate society.
 - (b) The POP will choose equality over power.
 - (c) The POP will be unselfish.
 - (d) The POP will choose to protect the disabled.
5. Soft positivism accepts that the rule of recognition may include moral criteria.' Which proposition below is the most inconsistent with this description?
 - (a) Incorporationism' accepts that judges may decide cases by reference to moral factors.'
 - (b) A soft positivist rejects the role of morality in the description of law.
 - (c) Sometimes the definition of law includes moral considerations.
 - (d) Judges lack strong discretion.

True / False (10 marks)

Answer True or False

6. True or False: Judicial decisions are always considered more important than legislation in the context of legal reasoning.
7. True or False: The Sociological School of jurisprudence views law as a tool for achieving and promoting specific social objectives.
8. True or False: Kelsen's theory defines law in relation to moral principles and justice, rather than solely discussing jurisprudence.
9. True or False: The Historical School claims that customs gain legal status solely through societal acceptance without judicial involvement.
10. True or False: Nozick argues that historical factors are more important than the moral implications of distribution in society.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the concept of positive obligations under the European Court of Human Rights, and analyze why the provision of housing for the homeless has not been recognized as such.
12. Discuss the key differences between conciliation and mediation in dispute resolution, focusing on their processes, roles of the facilitators, and implications for the parties involved.

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